Carnegie Mellon University

National Cyber Policy and Strategy

Professor Matthew Bukovic

TikTok Ban Analysis

An Analysis of the Potential Outcomes of Banning TikTok

Xocas Alvarez Jorge

Carnegie Mellon University — CMIST

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1 Introduction

The drawdown of the Global war on terror saw Obama's Pivot to Asia, which sought to contain China's recent military rise while engaging with it in an economic manner. The pivot anticipated strategic competition primarily centering around defense, trade, and alliance structures, but not to other technological and information spaces. Since 2012, Xi Jinping has reined in market forces and advanced policies that collectively transformed Chinese tech companies into potential instruments of state power.

Currently, TikTok, a short form video platform owned by Beijing based ByteDance, launched internationally in 2017. TikTok's recommendation engine was innovative, driving engagement, and reaching over one billion global users across 150 countries in 2021. In the U.S., TikTok alone has roughly 170 million users and 7.5 million businesses(Oxford Economics, 2024). Although a Chinese product, Tiktok is banned in mainland China where all short form content is subject to Chinese content regulations and censorship requirements.

As U.S-China Strategic competition increased, the risks of dual-use technology and TikTok more specifically became more readily apparent. In 2019, the U.S. Army and Navy had banned the platform for use. In 2020, the federal government announced it would ban TikTok, citing security reasons. This was not implemented and raised serious legal issues. Although several proven and unproven security concerns regard TikTok, the lack of a uniform regulatory framework makes the issue of banning TikTok moot, rather demonstrating a broader failure to develop coherent cyberpolicy at a national and federal level.

2 Potential Risks of Using TikTok

TikTok presents a risk profile that can potentially extend beyond data privacy concerns to encompass cybersecurity vulnerabilities, information manipulation, strategic intelligence exposure, cognitive harm, and economic displacement. The most immediate risks are technical and documented. In 2022, ByteDance confirmed that its employees accessed the IP addresses and location data of journalists. and location data through an internal operation known as Project Raven, approved by Beijing executives(Fung, 2022). Security researchers independently found that Tik-

Tok's iOS in-app browser injects JavaScript code into third-party websites, logging every keystroke entered(Lomas, 2022). Beyond cybersecurity, TikTok presents risks in the information space: in 2019, The Guardian reported that the platform had instructed moderators to suppress content referencing Tienanmen Square and Tibetan independence (Hern, 2019). Although reportedly discontinued, this demonstrated the possibility of shaping the information environment of 170 million American users along lines favorable to Beijing.

On a strategic level, these vulnerabilities compound. TikTok's privacy policy authorizes the collection of behavioral data, biometrics including faceprints and voiceprints, precise location data, social graphs, and browsing histories from its users. If fully exploited, it would constitute a behavioral profile of roughly half the U.S. population. Even absent public evidence that China has exploited this access, the structural exposure is a strategic liability that no serious power would tolerate in reverse(Lewis, 2024). Indeed, TikTok is banned in mainland China. A Chinese company captures a significant share of the American digital marketplace, while no American platform is permitted to operate in China. This asymmetry compounds strategic concerns with commercial dependency on a foreign-controlled platform. Finally, TikTok's algorithmically optimized engagement loop adds a cognitive dimension to the current risk profile, specifically addictive among younger users.

3 Benefits of Using TikTok

TikTok's value to the American public is significant because it sustains a multibillion-dollar creator economy, democratizes access to economic opportunity, and drives competitive innovation across the technology sector. TikTok's algorithm surfaces content based on engagement rather than follower counts or advertising spend, enabling first-time and small businesses to reach large audiences without institutional backing or capital, helping younger, less wealthy and minority creators who make a living from the platform. In addition to commerce, TikTok serves as a venue for civic participation and expression of the First Amendment; a Montana ban was struck down after a federal judge ruled it violated the constitutional rights of users and businesses (**associated2023**).

Furthermore, TikTok's presence has forced other companies facing antitrust scrutiny to develop competing short-form products, an innovation that ultimately would not have happened without

pressure from a foreign competitor. During TikTok's brief absence, many users migrated en masse to RedNote (Xiaohongshu), a Chinese platform with deeper ties to Beijing and far less regulatory oversight(Turvy & Scharlach, 2026). Bans often do not eliminate demand, but redirect it to less regulated alternatives, fragmenting oversight, and potentially worsening the very risk the prohibition was intended to address.

4 Implications for Citizens

For the average American user, the TikTok ban demonstrates that the federal government is willing to restrict the digital lives of 170 million citizens while offering no comparable protection against a domestic surveillance apparatus that collects far more of their data with far less scrutiny.

When evaluated through the STRIDE threat model, TikTok poses a credible risk to government employees, military personnel, and intelligence officers whose data could be cross-referenced for targeting or recruitment. However, ordinary citizens with negligible actionable intelligence would score quite low. This tier system is reflected by the 2019 DoD ban, acting in proportion to risk.

Conversely, banning TikTok on any grounds of cybersecurity is difficult to justify when a domestic surveillance apparatus poses a far more immediate threat. Since the passage of the Patriot Act, intelligence and security agencies of the federal government have conducted millions of warrantless backdoor searches of ordinary Americans, including protesters, journalists, and elected officials in what FISA's court states were "persistent and widespread violations" (Electronic Privacy Information Center, 2023). This surveillance now extends to biometric captures, predictive policing, and a robust corporate surveillance apparatus. Domestically, American technology companies engage in government data practices that rival or exceed anything TikTok has been accused of. Law enforcement routinely purchases data from commercial brokers to circumvent constitutional warrant requirements (Cyphers, 2022). The relationship between the commercial data economy and the national security state is not adversarial but symbiotic-not unlike the PRC where state and corporate interests are similarly fused under different ideological justification.

Although this does not excuse TikTok's data privacy shortcomings, a central contradiction is clear. The federal government has spent two decades building its capacity to surveil Americans

at scale, while banning a popular app over the possibility that a foreign government might one day surveil Americans. The TikTok ban does not protect citizens from surveillance, but rather consolidates surveillance within domestic hands.

5 Implications for the Government

The six year process regarding the TikTok ban is an indictment not of TikTok but rather the institutional, policy, and value shortcomings of the American government. Congress passed PAFACA with overwhelming bipartisan support, President Biden signed it, and the Supreme Court upheld it. However, the executive branch simply refused to enforce it for more than a year. For six years users continued using TikTok with alleged risks unaddressed, while the EU simply regulated TikTok under its Digital Services Act (Robertson & Kiely, 2025). The U.S. used legal threats, executive orders, and backroom negotiations before transferring operations to Oracle (a major data broker and DHS surveillance contractor). This only satisfied national security concerns, not cybersecurity or civil liberties.

The outcome underscores the government's priorities: strategic competition and commercial interests. The U.S. remains one of the only advanced democracies without comprehensive federal data privacy legislation, something at odds with a political culture rooted in individual liberty. Such values make the U.S. strong and within great power competition differentiate the U.S. from authoritarian competitors. A privacy-centered cyber policy would reinforce those values and the credibility of the U.S. on the global stage. The ban on a foreign application while tolerating mass domestic surveillance signals the opposite. At minimum, the TikTok ban demonstrates that the federal government lacks a coherent mechanism for addressing cyber threats in the commercial market. In the worst case, it suggests that regulation serves security and commercial interests rather than the average citizen.

6 Required Policy Changes

Policy makers must balance three competing interests: strategic security, economic vitality, and individual privacy. The TikTok ban failed because it prioritized the first two while neglecting the third. A durable framework must address all three simultaneously.

First, the U.S. needs comprehensive federal data privacy legislation with mandatory algorithmic transparency and auditing requirements, applied to all major platforms regardless of ownership. This should be analogous to the GDPR. The concern that TikTok's algorithm could be weaponized to manipulate public opinion is not unique to Chinese owned platforms, and the 2026 divestiture does not resolve it. Platform-neutral transparency would address the influence operation concern structurally, while neutralizing the accusation that American technology policy is selectively enforced against foreign competitors.

Second, the U.S. should adopt tiered, risk-based restrictions rather than blanket prohibitions. The 2019 DOD ban is a great example of a targeted response to sensitive personnel while preserving access for most citizens. An effective and proportionate model should be implemented, where data collection is based on the sensitivity of the user population, not a blanket ban affecting 170 million Americans but only threatening a select few.

Finally, Congress should empower the Department of Commerce's ICTS authorities to create a mechanism for assessing and regulating foreign-controlled applications, enabling the government to address emerging threats through a routine regulatory process rather than the cycle of legislative emergencies and ad hoc executive orders that defined the TikTok saga.

7 Conclusion

Ultimately, banning TikTok does not matter if the conditions that made it a threat remain unaddressed. Without a proper regulatory framework and coherence, any adversarially owned platform risks triggering the same cycle of congressional alarm, performative hearings, and ad hoc executive responses. As such TikTok should not be banned but rather regulated. The ban on TikTok is not a substitute for a functioning regulatory framework. The issue at hand is not data collection, but rather who is allowed to do it.

This is not a principled foundation for technology policy in a democracy. The U.S.'s greatest strength over its authoritarian competitors has never been military or economic force alone, but its commitment to democratic values. A comprehensive, privacy-centered cyber policy would reinforce

that commitment, whereas banning a single foreign application signals the opposite. The ban on TikTok was never the problem, only a symptom of critical shortcomings in national cyber policy and the values that should underpin it.

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